

Amendment No. 5 to SB2247

Johnson
Signature of Sponsor

AMEND Senate Bill No. 2247*

House Bill No. 2532

by deleting Section 3 and substituting:

SECTION 3. Tennessee Code Annotated, Section 49-3-108(i), is amended by deleting the subsection and substituting:

(i)

(1) For the 2026-2027 school year, if an LEA's TISA allocation for the current school year is less than the LEA's TISA allocation for the 2025-2026 school year and the LEA experienced disenrollment, then the department shall allocate additional funds to the LEA in the amount of the difference between the LEA's TISA allocation for the current school year and the LEA's TISA allocation for the 2025-2026 school year.

(2)

(A) For the 2027-2028 and 2028-2029 school years, if an LEA's TISA allocation for the current school year is less than the LEA's TISA allocation for the 2025-2026 school year and the LEA experienced disenrollment, then the department shall allocate additional funds to the LEA in the amount of the average per pupil state funds received by the LEA in the immediately preceding school year for each student who disenrolled from the LEA in the immediately preceding school year and, at the time of the student's registration or enrollment, provided the LEA with the student's social security number.

(B) The department shall require each LEA, as a condition to the receipt of any additional funds pursuant to this subdivision (i)(2), to report to the department the reason for disenrollment provided by each non-virtual student who disenrolled from the LEA in the immediately preceding school year, regardless of whether the student provided the LEA with their social security number at the time of registration or enrollment.

(C) The sum total of any additional funds received by an LEA pursuant to this subdivision (i)(2) must not exceed the difference between the LEA's TISA allocation for the current year and the LEA's TISA allocation for the 2025-2026 school year.

(3)

(A) Beginning with the 2029-2030 school year, if an LEA's TISA allocation for the current school year is less than the LEA's TISA allocation for the 2025-2026 school year and the LEA experienced disenrollment, then the department shall allocate additional funds to the LEA in the amount of the average per pupil state funds received by the LEA in the immediately preceding school year for each student who disenrolled from the LEA for the immediately preceding school year and received, for the immediately preceding school year, an education freedom scholarship pursuant to chapter 6, part 35 of this title.

(B) The sum total of any additional funds received by an LEA pursuant to this subdivision (i)(3) must not exceed the difference between the LEA's TISA allocation for the current year and the LEA's TISA allocation for the 2025-2026 school year.

(4)

(A) Any additional funds provided to an LEA pursuant to this subsection (i) must be solely state funded.

(B) If an LEA is eligible for additional funds under subdivision (i)(1) and subsection (b) or subsection (c), then the department shall only award additional funds to the LEA pursuant to subdivision (i)(1) and shall not award any additional funds to the LEA pursuant to subsection (b) or subsection (c).

(C) If an LEA is eligible for additional funds under subdivision (i)(2) or (i)(3) and subsection (b) or subsection (c), then the department shall only award additional funds to such LEA pursuant to subdivision (i)(2) or (i)(3), subsection (b), or subsection (c), whichever results in the LEA receiving the greatest amount of additional funding.

(5) As used in this subsection (i), "disenrollment" means that the LEA's non-virtual average daily membership for the current school year is lower than the LEA's non-virtual average daily membership for the immediately preceding school year.